

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:

DAVID LEWIS,

SUMMONS

Plaintiff,

-against-

Plaintiff designates Queens
County as the place of trial.
The basis of the venue is locus
of occurrence.

CITY OF NEW YORK and POLICE OFFICER ANTHONY
MINICHINI,

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 9, 2023

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.

Attorneys for Plaintiff
250 West 57th Street - Suite 1619
New York, New York 10107
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

Defendants' Addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER ANTHONY MINICHINI
103rd Precinct
168-02 91st Avenue
Queens, NY 11432

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:

DAVID LEWIS,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK and POLICE OFFICER ANTHONY
MINICHINI,

Defendants.

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Plaintiff, DAVID LEWIS, by his attorneys FRIEDMAN, LEVY, GOLDFARB & GREEN,
P.C. as for his Verified Complaint, alleges the following, upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under the laws of the State of New York.

2. At all times hereinafter mentioned, Defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is a department of the Defendant, CITY OF NEW YORK, duly organized and existing under the laws of the State of New York.

3. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK, its agents, servants and employees operate, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT, including all Police Officers thereof.

4. At all times hereinafter mentioned, on October 14, 2021, Defendant POLICE OFFICER ANTHONY MINICHINI, was employed by Defendant CITY OF NEW YORK, as a police officer.

5. At all times hereinafter mentioned, Defendant POLICE OFFICER ANTHONY MINICHINI, was acting within the scope of his employment as a police officer with CITY OF NEW YORK.

6. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

7. Defendant, CITY OF NEW YORK, is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of POLICE OFFICER ANTHONY MINICHINI, as said risk attaches to the public consumers of the services provided by NEW YORK CITY POLICE DEPARTMENT.

8. At all times hereinafter mentioned Defendant, CITY OF NEW YORK, employed POLICE OFFICER ANTHONY MINICHINI.

9. At all times hereinafter mentioned Defendant, NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER ANTHONY MINICHINI.

10. At all relevant times, the individual defendant was acting pursuant to their authority as a NEW YORK CITY POLICE DEPARTMENT employee. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendant was taken in the course of their duties and were incidental to their otherwise lawful function as an agent, servant, and employee of the NEW YORK CITY POLICE DEPARTMENT.

11. The Plaintiff, DAVID LEWIS (“LEWIS”) was, on October 14, 2021, and at all times, a resident of the County of Queens, City and State of New York, residing at 175-11 147th Avenue, Queens, NY 11434.

CONDITIONS PRECEDENT

12. On or about January 3, 2022, and within ninety (90) days of the occurrence complained of hereinafter, Plaintiff duly served a Notice of claim upon CITY OF NEW YORK in the manner and mode required by law.

13. At least thirty (30) days have elapsed since the service of the claim prior to the Commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

14. On October 17, 2022, the Plaintiff complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law.

JURISDICTION AND VENUE

19. The Plaintiff brings this action in the Supreme Court, State of New York, CITY OF NEW YORK, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

20. The Plaintiff properly designates Queens County as the place of trial. The basis of the venue is the locus of the occurrence.

STATEMENT OF FACTS

21. On or about October 14, 2021, at approximately 10:30 p.m., plaintiff was a lawful passenger in 2007 Honda Accord, that was lawfully in the roadway adjacent to 110-00 Rockaway Blvd, Queens, NY, also known as Resorts World Casino.

22. At the above specified time and place, without justification or provocation and without a warrant, the defendants, POLICE OFFICER ANTHONY MINICHINI, illegally stopped, assaulted, battered and unduly restrained, plaintiff LEWIS.

23. Defendants struck plaintiff LEWIS about the head and body with fists, and tasered Plaintiff Lewis multiple times while assaulting, battering, accosting, confining, unduly restraining, plaintiff, DAVID LEWIS, without reasonable cause, provocation and/or justification.

24. Plaintiff LEWIS suffered bruising about the head, face and body and permanent injury to his wrist.

25. Plaintiff LEWIS was taken to Jamaica Hospital and held there for twenty-four hours. He was held at Central Booking for two days and then Rikers Island for 60 days.

AS AND FOR A FIRST CAUSE OF ACTION

26. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “25”, inclusive, as though each were set forth at length herein.

27. On October 14, 2021, and thereafter, in the CITY OF NEW YORK, State of New York, the Defendants, their agents, servants and/or employees, accosted, assaulted and battered plaintiff, LEWIS, without any right or grounds thereof.

28. Defendant, POLICE OFFICER ANTHONY MINICHINI, injured and maimed the plaintiff LEWIS by repeatedly striking and tasered plaintiff to cause injury and restrained him and such that he was unable to move freely or otherwise leave the scene.

29. Plaintiff was confined, assaulted, and battered by the defendants, their agents, servants and/or employees without probable cause and/or justification.

30. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned assault and battery of plaintiff, LEWIS.

31. The said assault and battery did cause plaintiff, LEWIS, to suffer physical, emotional and psychological distress, anguish, anxiety, fear, loss of freedom.

32. This unlawful search and seizure were without due process of law and was done to deprive plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

33. It is alleged that Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ANTHONY MINICHINI their agents, servants, and employees, maliciously and intentionally assaulted, battered and humiliated plaintiff, LEWIS, in violation of his constitutional rights.

34. As a direct result of the above defendants' actions, plaintiff, LEWIS, suffered and continues to suffer severe physical and mental anguish, humiliation, shame, emotional distress and, some or all of which may be permanent.

35. Plaintiff, LEWIS, suffered – and continues to suffer – greatly, was and is physically and emotional traumatized by this excessive use of force.

36. As a direct and proximate result of defendants' actions, plaintiff, LEWIS, was deprived of rights, privileges, and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York.

37. As a result of the foregoing, plaintiff, LEWIS, demands judgment against Defendants, CITY OF NEW YORK, POLICE OFFICER ANTHONY MINICHINI, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

38. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “37”, inclusive, as though each were set forth fully at length herein.

39. The actions of defendants heretofore described constitute an assault and battery, all in violation of plaintiff, LEWIS's civil rights.

40. Defendants deprived plaintiff, LEWIS, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

41. Defendants violated the civil and constitutional rights of plaintiff, LEWIS, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

42. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

43. The supervisors and policy making officers of Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, as a matter of policy, failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individual officer engaged in such practices.

44. Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, have sanctioned the above-described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of plaintiff, LEWIS, and others similarly situated.

45. As a result of the foregoing, plaintiff, LEWIS, demands judgment against Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ANTHONY MINICHINI, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

46. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “45”, inclusive, as though each were set forth fully at length herein.

47. Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, hired and retained in its employ police officers, including defendants POLICE OFFICER ANTHONY MINICHINI, with the knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and were, therefore, unfit to be a police officer.

48. Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, hired and retained in its employ police officers, including defendants POLICE OFFICER ANTHONY MINICHINI, with knowledge that said police officer lacked the department to be employed by the aforementioned defendant, and were, therefore, unfit to be a police officer.

49. Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, hired and retained in its employ police officers, including defendant POLICE OFFICER ANTHONY MINICHINI, with knowledge that said police officer lacked the experience to be employed by the aforementioned defendants, and therefore, were unfit to be a police officer.

50. Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, hired and retained in its employ police officers, including Defendants POLICE OFFICER ANTHONY MINICHINI, with knowledge that said police officer had vicious propensities and were therefore unfit to be a police officer.

51. As a result of the foregoing, plaintiff LEWIS, has suffered serious and severe physical and emotional distress and personal injuries.

52. As a result of the foregoing, plaintiff LEWIS, demands judgment against Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ANTHONY MINICHINI, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

53. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “52”, inclusive, as though each were set forth fully at length herein.

54. That the aforementioned occurrences, to wit: the assault and battery committed by defendants against plaintiff LEWIS; the violation of plaintiff’s civil and constitutional rights; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff LEWIS.

55. As a result of the foregoing, plaintiff LEWIS, demands judgment against Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ANTHONY MINICHINI, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

56. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “55”, inclusive, as though each were set forth fully at length herein.

57. Defendants’ conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

58. Defendants acted with the desire to cause plaintiff LEWIS, mental distress and physical distress and pain, or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

59. Defendants acted with utter and reckless disregard of the consequences of their actions.

60. As a result of the foregoing, plaintiff LEWIS, has sustained severe and debilitating physical, emotional, and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

61. As a result of the foregoing, plaintiff LEWIS, demands judgment against Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ANTHONY MINICHINI, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN SIXTH CAUSE OF ACTION

62. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “61”, inclusive, as though each were set forth fully herein.

63. Upon information and belief, defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and through other police officers who are unknown at this time, by their conduct and under color of state law, had opportunities to intercede on behalf of plaintiff LEWIS to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

64. As a direct and proximate result, Plaintiff suffered injuries and damages described above.

65. As a result of the foregoing, plaintiff LEWIS, demands judgment against Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE

OFFICER ANTHONY MINICHINI, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

66. That by reason of the foregoing, plaintiff, LEWIS, was severely injured and damaged, sustained personal injuries, bruises, trauma, mental distress and other injuries; his civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some injuries which are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, and other effects of such injuries, and plaintiff has suffered and in the future will necessarily suffer additional medical expenses, loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

67. Plaintiff LEWIS suffered a deprivation of his civil rights and liberty, the use of excessive and unnecessary force was used against him; he assaulted, battered, humiliated, unlawfully detained, suffered emotional harm, shock, and fear and anxiety as a result of this incident.

68. Plaintiff was deprived of his freedom.

69. As a result of the aforementioned acts, Defendants violated the rights of plaintiff LEWIS, secured to him under the Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

70. Plaintiff LEWIS was caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

71. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

72. As a result of the aforesaid, plaintiff LEWIS, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, DAVID LEWIS, respectfully demands judgment against defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ANTHONY MINICHINI, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York
January 9, 2023

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.

Attorneys for Plaintiff

250 West 57th Street - Suite 1619

New York, New York 10107

(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C., attorneys of record for the plaintiff. I have read the annexed

SUMMONS and VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff resides outside of the county wherein your affirmant maintains an office.

Dated: New York, New York
January 9, 2023



NICOLAS BAGLEY, ESQ.